

PLE5028: PERSONAL INJURIES PRACTICE

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Personal Injuries Practice

Subject Code

PLE - Professional Legal Education

Course Number

5028

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

Non-standard Duration

Other Course Duration

Semester B (7 weeks - estimated)

Credit Units

2

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

This course aims to prepare students for the practice of personal injuries litigation, so that, on completion of the course, students who have taken this elective will possess the foundational knowledge and skills to advise clients and render a range of services that would be undertaken by a junior personal injuries litigator in Hong Kong.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Conduct conferences with a clients in preparation for drafting court documents relating to a personal injuries litigation		x	x	x
2	Assess the likely outcome of a proposed course of action and advise upon the various strategic issues related to the said actions		x	x	
3	Draft court documents relating to personal injuries litigation			x	x
4	Comply with court rules in relation to drafting of court documents relating to personal injuries litigation			x	x
5	Manage a personal injuries case from commencement of the action to trial		x	x	
6	Assess the proportionality and reasonableness of the proposed advice		x	x	
7	Consider settlement options and advise on the various alternatives available to clients whilst keeping the clients best interests in mind		x	x	x
8	Draft written advice to client		x	x	x
9	Prepare the case for trial		x	x	
10	To discover how personal injuries litigation (specialty cases) differs from general civil lawsuits both in terms of substantive law and procedures and appreciate the importance of various statutory legislations which are fundamental to the practice of personal injuries law in Hong Kong		x	x	

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	1	Students will receive instruction on how to conference with a witness in a large group session. They will have a conference with a client and receive feedback in a small group session.	1	
2	2	Students will receive instruction on what course(s) of action to take on behalf of the client during large group sessions.	2	
3	3	Students will receive instruction on how to draft these documents in large group sessions. They will then draft these documents and receive feedback in small group sessions and/or written comments on their submissions.	3, 4, 8	
4	4	Students will receive instruction in large group and small group sessions.	5	
5	5	Students will receive instruction on how to advise client on merits, quantum and evidence of the case.	6	
6	6	Students will receive instruction on the available settlement options, how to advise client on settlement options and assess the settlement offers made by opposition.	7	
7	7	Students will receive instruction on how to prepare a case for trial.	9	

Continuous Assessment (%)

0

Examination (%)

100

Examination Duration (Hours)

3.5

Minimum Examination Passing Requirement (%)

50

Additional Information for ATs

Assessment: CILO No. 1,2,3,4,5,6,7,8,9.

The use of Generative AI tools is not allowed.

Assessment Rubrics (AR)

Assessment Task

Examination at the end of the semester.

Criterion

To pass this course students must obtain an aggregate mark of 50%.

Excellent

(A+, A, A-) The work meets the client' s needs in all respects, evidenced by:

- a superior grasp of the issues and subject matter
- good organization
- a capacity to analyze and synthesize
- possession of an extensive knowledge base
- a superior use of lawyer skills.

Good

(B+, B, B-) The work meets the client' s needs in most respects, evidenced by:

- a strong grasp of the issues and subject matter
- some critical and analytical ability
- an understanding of the applicable law and procedures
- a good use of lawyer skills.

Fair

(C+, C, C-*) The work meets the client' s main needs, evidenced by:

- an adequate grasp of the issues and subject matter
- an ability to develop solutions to the client' s problems
- a basic use of lawyer skills.

Marginal

(D*)

Failure

(F) The work does not meet the client' s needs, evidenced by little or an insufficient:

- grasp of the issues and subject matter
- critical and analytical ability
- understanding of the applicable law and procedures.

Additional Information for AR

* Note: The University's grades C- and D are not used in the PCLL.

Part III Other Information

Keyword Syllabus

- Conferencing with clients
- Course(s) of action

- Court documents
- Case management
- Settlement
- Advice
- Preparation for trial
- Discovery of the differences between Personal Injuries Litigations and General Civil Lawsuits

Reading List

Compulsory Readings

Title	
1	Personal Injuries Practice Desk Book

Additional Readings

Title	
1	Rick Glofcheski, Tort Law in Hong Kong, 2nd Edition, Sweet & Maxwell.
2	Butterworths Hong Kong personal injury service, Butterworths Asia.
3	Neville Sarony QC, Wai-Sum Chan and Felix Wai-hon Chan, Personal Injury tables Hong Kong 2013: tables for the calculation of damages, Sweet & Maxwell, 2013.
4	Atkins court forms Hong Kong, Butterworths Asia.
5	Patrick Curran QC, Personal injury pleadings, Sweet & Maxwell, 1995.
6	Hong Kong Judiciary Website